

25STCV08548 25STCV08548

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-02

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Case Number: 25STCV08548 Hearing Date: September 2, 2026 Dept: 512

HEARING DATE: Weds., September 2, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Guardado

v. FCA US, LLC, et al. COMP.

FILED: 03-24-25

CASE NUMBER: 25STCV08548

FAC FILED: 09-11-25

NOTICE: OK

PROCEEDINGS: MOTION

FOR SUMMARY ADJUDICATION

MOVING PARTY: Defendant

FCA US, LLC

RESP. PARTY: None

MOTION FOR

SUMMARY ADJUDICATION

(CCP § 437c)

TENTATIVE RULING:

Defendant FCA US, LLC's

unopposed Motion for Summary Adjudication as to Plaintiff's Sixth Cause of

Action for Fraudulent Inducement – Concealment is GRANTED.

Moving party is ordered to
give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of August 31, 2026 ☐ Late ☒
None

REPLY: None
filed as of August 31, 2026 ☐ Late ☒ None

ANALYSIS:

I.
Background

On March 24, 2025, Plaintiff Jennifer Guardado (“Plaintiff”) filed the instant action against Defendants FCA US, LLC (“FCA US”) and Premier Chrysler Dodge Jeep Ram of Buena Park (“Premier Chrysler”) (“Defendants”) and Does 1-10.

On September 11, 2025, Plaintiff filed a First Amended Complaint (“FAC”) against Defendants for Violation of Statutory Obligations.

On October 20, 2025, Premier Chrysler filed an Answer.

On June 4, 2026, FCA US filed the instant Motion for Summary Adjudication as to Plaintiff's Sixth Cause of Action for Fraudulent Inducement – Concealment (the "Motion") and request for judicial notice.

On June 23, 2026, the Court granted FCA US's Ex Parte Application 2026.06.22 Ex Parte Regarding MSJ and Trial (Guardado v FCA) and, in pertinent part, continued the Jury Trial from September 28, 2026, to November 16, 2026. (6/23/26 Order.)

That same day, Defendants filed an Answer to the FAC.

No Opposition to the Motion has been filed.

II.
Request
for Judicial Notice

In support of the Motion, FCA US requests the Court take judicial notice of the FAC filed in this matter. (RJN, pp. 2-3.)

The Court GRANTS the request pursuant to Evidence Code section 452, subdivision (d).

III.
Legal
Standard

Summary judgment is proper "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (c).) The moving party "bears the burden of persuasion that there is no triable issue of material fact." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850 (Aguilar).) To secure summary judgment, a moving defendant may prove an affirmative defense, disprove at least one essential

element of the Plaintiff's cause of action . . . or show that an element of the cause of action cannot be established.”

(Sanchez v. Swinerton & Walberg Co. (1996) 47 Cal.App.4th 1461, 1465; Code Civ. Proc., § 437c, subd. (p)(2).)

“The defendant

may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence—as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing. But . . . the defendant must indeed present evidence.” (Aguilar, supra, 25 Cal.4th at p. 855.) “In other words, all that the defendant need do is to show that the plaintiff cannot establish at least one element of the cause of action—for example, that the plaintiff cannot prove element X.” (Id., at 853.) Summary judgment in California “may be reduced to, and justified by, a single proposition: If a party moving for summary judgment in any action . . . would prevail at trial without submission of any issue of material fact to a trier of fact for determination, then he should prevail on summary judgment. In such a case . . . the ‘court should grant’ the motion ‘and ‘avoid a . . . trial’ rendered ‘useless’ by nonsuit or directed verdict or similar device. (Id., at p. 855.)

Until the moving

defendant has discharged its burden of proof, the opposing plaintiff has no burden to come forward with any evidence. Once the moving defendant has discharged its burden as to a particular cause of action, however, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) On a motion for summary judgment, the moving party's supporting documents are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (D'Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21.)

Code of Civil Procedure Section 437c,

subdivision (f) provides that a party may move for summary adjudication as to one or more causes of action or one or more claims for damages if it is contended that the cause or claim has no merit. Motions for summary

adjudication are procedurally identical to motions for summary judgment. (Code Civ. Proc., § 437c, subd. (f)(2); see *Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 859.)

IV.

Discussion

A. Undisputed Facts

No Opposition or Response to the Motion was filed. Thus, all facts are undisputed.

B. Analysis

Timeliness

The Motion was filed and served by electronic service on June 4, 2026 (Motion, Proofs of Service), and the time appointed for hearing on the Motion was September 2, 2026.

Code of Civil Procedure section 437c provides in pertinent part:

A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. The motion may be made at any time after 60 days have elapsed since the general appearance in the action or proceeding of each party against whom the motion is directed or at any earlier time after the general appearance that the court, with or without notice and upon good cause shown, may direct.

Notice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing. If the notice is served by mail, the required 81-day period of notice shall be increased by 5 days if the place of address is within the State of California, 10 days if the place of address is outside the State of California but within the United States, and 20 days if the place of address is outside the United States. If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days.

The motion shall be heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise. The filing of the motion shall not extend the time within which a party must otherwise file a responsive pleading.

(Code Civ. Proc.,
§ 437c, subd. (a)(1)-(3).)

Code of Civil Procedure section 1010.6 states, in pertinent part: "If a document may be served by mail, express mail, overnight delivery, or facsimile transmission, electronic service of that document is deemed complete at the time of the electronic transmission of the document or at the time that the electronic notification of service of the document is sent. Any period of notice, or any right or duty to do any act or make any response within any period or on a date certain after the service of the document, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days."
(Code Civ. Proc., § 1010.6, subd. (3)(A)-(B).)

Here, the Motion was filed and served more than 83 days before the time appointed for hearing.

The Jury Trial in this matter is scheduled for November 16, 2026, and the Motion is scheduled for hearing on September 2, 2026. Thus, the Motion is being heard 30 days before trial.

Accordingly, the Motion is timely.

Cause of Action No. 6 – Fraudulent
Inducement (Concealment)

FCA US moves for summary adjudication as to the sixth cause of action in the FAC.

"Fraudulent inducement is a viable tort claim under California law. 'The elements of fraud are (a) a misrepresentation (false representation, concealment, or nondisclosure); (b) scienter or knowledge of its falsity; (c) intent to induce reliance; (d) justifiable reliance; and (e) resulting damage. Fraud in

the inducement is a subset of the tort of fraud. It ‘occurs when “the promisor knows what he is signing but his consent is induced by fraud, mutual assent is present and a contract is formed, which, by reason of the fraud, is voidable.’ ” (Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 838-839, internal citations omitted.)

“The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) the plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.)

A cause of action for fraud must be “ ‘pled specifically; general and conclusory allegations do not suffice. ... “ ‘This particularity requirement necessitates pleading facts which “ ‘show how, when, where, to whom, and by what means the representations were tendered.’ ” ” (Small v. Fritz Companies, Inc. (2003) 30 Cal.4th 167, 184, citing Lazar, supra, 12 Cal.4th at p. 645.)

Here, the FAC alleges, in pertinent part, that FCA US committed fraud “by allowing the Subject Vehicle to be sold to Plaintiff without disclosing that the Subject Vehicle and its transmission were defective which can cause hesitation on acceleration, loss of power, hard and/or harsh shifts, and/or jerking. It can also result in a total loss of power and/or failure to accelerate while driving, significantly impair driver control. Indeed, Plaintiff alleges that prior to the sale of the Subject Vehicle to Plaintiff, Defendant FCA knew that the Vehicle and its 9-speed transmission suffered from an inherent defect, was defective, would fail prematurely, and was not suitable for its intended use.” (FAC, ¶¶ 90-91.)

In support of the Motion, FCA US submits evidence of Plaintiff’s deposition transcript that contains the following question and answer by Plaintiff:

Q. And then are you claiming that FCA

was aware that the vehicle had an -- or had a transmission defect at the time of your purchase?

A. I -- no, I don't have that.

(Motion, pp. 6-8, Sep. Statement, ¶ 9, Wang Decl., ¶ 5, Exh. F, p. 63.)

The evidence carries FCA US's initial burden of proof as to the Fraudulent Inducement claim. FCA US has demonstrated that Plaintiff is unable to establish FCA US knew of the transmission defect that serves as the basis for the FAC's sixth cause of action and thus intentionally concealed and/or suppressed the transmission defect. (Aguilar, supra, 25 Cal.4th at pp. 853, 855; Rattagan, supra, 17 Cal.5th at p. 40; Dhital, supra, 84 Cal.App.5th at pp. 838-839.)

The burden now shifts to Plaintiff to demonstrate a triable issue of material fact. However, no Opposition to the Motion has been filed. Thus, Plaintiff has failed to demonstrate the existence of any triable issue of material fact as to the sixth cause of action.

Accordingly, the Motion is GRANTED.

V.

Conclusion
& Order

For the foregoing reasons,
Defendant FCA US, LLC's unopposed Motion for Summary Adjudication as to Plaintiff's Sixth Cause of Action for Fraudulent Inducement – Concealment is GRANTED.

Moving party is ordered to
give notice.